IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH- V

CA (CAA) 38/230-232/ND/2022

IN THE MATTER OF:

Sections 230-232 of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. TRIKOOT GOODS PRIVATE LIMITED
HAVING REGISTERED OFFICE AT:
B-6/205, Laxmi Complex, Subhash Chowk,
Laxmi Nagar, East Delhi, DL- 110092
Email ID: trikootgoods@gmail.com

.....Applicant No. 1/Transferor Company

WITH

2. SILVERTOAN PAPERS LIMITED
HAVING REGISTERED OFFICE AT:
B-6/205, Laxmi Complex, Subhash Chowk,
Laxmi Nagar, East Delhi, DL- 110092
Email ID: silvertoanpapers@gmail.com

.....Applicant No. 2/Transferee Company

3. THE REGISTRAR OF COMPANIES
4th Floor, IFCI Tower, 61
Nehru Place, New Delhi-110019
Email ID: roc.delhi@mca.gov.in

4. THE REGIONAL DIRECTOR, NORTHERN REGION
B-2 Wing, 2nd Floor,
Paryavaran Bhawan,
CGO Complex, New Delhi-110003
Email ID: rd.north@mca.gov.in

5. THE OFFICIAL LIQUIDATOR
8th Floor, Lok Nayak Bhawan,
Khan Market, New Delhi-110001

Email ID: ol.delhi@mca.gov.in

ORDER DELIVERED ON: 06.06.2022

CORAM:
MR. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
MR. HEMANT KUMAR SARANGI, HON'BLE MEMBER (TECHNICAL)

For Applicants: Adv. Alok Kumar Kuchhal

ORDER

PER: MR. ABNI RANJAN KUMAR SINHA, MEMBER (Judicial)

1. This is an application filled by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013 (for brevity "The Act") read with Companies (Compromises, Arrangements and Amalgamation) Rule, 2016 (for brevity "The Rules") in relation to the Scheme of Amalgamation (for brevity the "The Scheme") proposed between the Applicant Companies. In terms of Sections 230 and 232 of the Act, the following prayers have been made for orders:-

a. *Dispensing with the requirement for convening the meetings of the equity shareholders of the Applicant Nos: I & 2 and also to dispense with the requirement of issue and publication of notices for the same.*

b. *Dispensing with the requirement for convening the meeting of the secured and unsecured creditors of the Applicant Nos. 1 &`2 and also to dispense with the requirement of issue and publication of notices for the same. It is important to mention that the Applicant Company No. I has no secured and unsecured creditors.*

c. *Issuing necessary directions for permitting the filing of application, petition, and other documents as may be required, for the purpose of sanctioning the proposed scheme of amalgamation between Applicant Nos. 1 & 2, their respective shareholders and cerditors.*

d. Pass such other orders or directions as this Hon'ble Tribunal may deem fit in the facts and circumstances of the case.

2. That affidavits (@page 25-30 of the Application) in support of the application sworn for and on behalf of the Applicant Company no. 1 have been filed by Ms. Sonia Goyal and on behalf of the Applicant Company no. 2 have been filed by Mr. Amit Garg, being the authorized signatories.

3. That vide affidavits dated 19.03.2022 (@page 30-36 of the Application), it is submitted that no investigation or proceedings under the Companies Act, 1956/ Companies Act, 2013 or the Insolvency and Bankruptcy Code, 2016 have been instituted or are pending in relation to Applicant Companies. It is further submitted that in terms of Section 230(2)(b) of the Act, the Scheme is neither the scheme of corporate debt restructuring nor any reduction of share capital of the Applicant Companies has been included therein and hence, a creditor's responsibility statement and other requirements of Section 230(2)(c) of the Companies Act, 2013 are not applicable to the present Scheme of amalgamation.

4. That it is submitted that the proposed amalgamation is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013 and the same if sanctioned by this Tribunal, the appointed date as provided in the Scheme of amalgamation (@page 150-185 of the application) shall be **01.04.2021.**

5. That in relation to the Transferor Company no. 1, it has been represented that the company has 15 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record (@page 190-235 of the Application). It is further submitted that the Transferor Company No. 1 has no Secured and Unsecured Creditors. The certification of the statutory auditors of the Transferor Company No. 1 to this effect has been place on record (@page

236-237 of the Application). In relation to the shareholders, secured and unsecured creditors, the Transferor Company seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

6. That in relation to the Transferee Company, it has been represented that the company has 37 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record (@page 242-349 of the Application). It is further submitted that the Transferee Company has 1 Secured and 133 Unsecured Creditors whose consent have been obtained. The certification of the statutory auditors of the Transferee Company to this effect has been place on record (@page 350-351 and 356-370 of the Application). The consent affidavits of each of the members have been placed on record (@page 352-355 and 371-754 of the Application). In relation to the shareholders, secured and unsecured creditors, the Transferee Company seeks dispensation from convening and holding of their respective meetings, on the ground that all of them have given their consent affidavits in favour of the Scheme.

7. We have heard the Ld. Counsel for the Applicant Companies and perused the averments made in the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Companies.

8. That the Transferor Company No. 1 – TRIKOOT GOODS PRIVATE LIMITED was incorporated on 13.01.2009 under the provisions of Companies Act, 1956. ON 14.11.2021, the Company shifted its registered office from the state of "West Bengal" to "NCT of Delhi", and for such alteration having been confirmed by an order of Regional Director bearing the date 27.10.2021. Post such alteration, the Transferor Company has its registered office in the state of Delhi. The authorised share capital of the

Company is Rs. 38,50,000/- divided into 3,85,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 38,50,000/- divided into 3,85,000 equity shares of Rs. 10/- each fully paid up. (@page 12 of the Application).

9. That the Transferee Company – SILVERTOAN PAPERS LIMITED was incorporated on 31.05.1990 under the provisions of Companies Act, 1956 with the name "Silverton Papers Limited" and later on 06.11.2013, it has changed its name to "Silvertoan Papers Limited". On 16.03.2011, the registered office was shifted from the state of Uttar Pradesh to NCT of Delhi. The Transferee Company has its registered office in the state of Delhi. The authorised share capital of the Company is Rs. 16,00,00,000/- divided into 1,60,00,000 equity shares of Rs. 10/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 13,02,50,040/- divided into 1,30,25,004 equity shares of Rs. 10/- each fully paid up (@page 15 of the Application).

10. It is seen that the Board of Directors of the Transferee Company vide meetings held on 15.02.2022 have unanimously approved the proposed Scheme of Amalgamation. Copies of such resolutions passed have been placed on record (@page 186-187 of the Application).

11. That the Applicant Companies have filed the Audited Balance Sheet and Profit & Loss Account for the financial year ended 31st March, 2021 and provisional financial statement for the period ended 31st January, 2022 (@page 56-73 and 117-148 of the Application).

12. That the Certificate of respective statutory auditors of the Applicant Companies have been placed on record confirming that the accounting treatment in the scheme is in conformity with Section 133 of the Companies Act, 2013 (@page 767-770 of the Application).

13. Net worth Certificates of the Applicant Companies dated 15.02.2022 has also been placed on record. (@page 755-766 of the Application)

14. Valuation Report dated 20.02.2022 has also been placed on record. (@page 771-784 of the Application)

15. In sequel to the above, in our considered view, the Tribunal, in view of the settled law, is empowered to dispense with the meeting of shareholders if they have given their consent. Further, in view of Section 230(9) of the Companies Act, 2013, the Tribunal is empowered to dispense with calling of a meeting of creditors or class of creditors where such creditors or class of creditors, having at least ninety per cent value, agree and confirm, by way of affidavit, to the scheme of compromise or arrangement. Accordingly, the following directions are given: -

A. In relation to the Transferor Company No. 1:

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting of shareholders is dispensed with.

ii. With respect to Secured Creditors:

Since there is no Secured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

Since there is no UnSecured Creditor. Therefore, the necessity of convening and holding a meeting does not arise.

B. In relation to the Transferee Company:

i. With respect to Shareholders:

Since all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

Since Secured Creditor has already placed his consent-affidavits on record. Therefore, the necessity of convening and holding a meeting of Unsecured Creditors is dispensed with.

iii. With respect to Unsecured Creditors:

Since all the Unsecured Creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting of Unsecured Creditors is dispensed with.

16. Accordingly, in terms of the above order, CA (CAA) 38 (ND) of 2022 is allowed.

Sd/-

(HEMANT KUMAR SARANGI)
Member (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
Member (J)